

25STCV20313 25STCV20313

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV20313 Hearing Date: July 22, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV20313

GABRIEL

M DE LA ROSA vs FCA US LLC, et al.

July

22, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO COMPEL INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF
CIVIL PROCEDURE § 871.26 AND REQUEST FOR MONETARY SANCTIONS.

RULING:

The Court denies the Motion.

Defendant to give notice.

I.

BACKGROUND

On July 1, 2025, GABRIEL M DE LA ROSA (Plaintiff) filed a Lemon Law Complaint against FCA US LLC and MOSS BROS. CHRYSLER DODGE JEEP RAM SAN BERNARDINO (Defendants), alleging Causes of Action under the Song-Beverly Consumer Warranty Act (Civ. Code §§ 1790-1795.8), along with claims for Negligent Repair and Fraudulent Inducement - Concealment.

Plaintiff alleges purchasing, with warranty provisions, a 2023 Dodge Challenger that Defendant FCA US LLC manufactured, which had defects, including engine, transmission, and electrical. Plaintiff further alleges that Defendant failed to repair the vehicle within a reasonable number of attempts and did not promptly replace it or make restitution.

On June 22, 2026, Plaintiff filed the Motion to Compel Initial Disclosures that are verified, pursuant to section 871.26, and to obtain sanctions.

FCA US LLC (Defendant) filed an Opposition, reporting statutory compliance and objecting to requests exceeding the statutory scope.

II.

LEGAL STANDARD

Code of Civil Procedure section 871.26 provides that, unless the party failing to comply with discovery requirements shows good cause, judges shall impose sanctions, including \$1,500.00 against a plaintiff's attorney, or \$2,500.00 against a defendant's attorney, to be paid within 15 business days, for the failure to comply with initial document production. (Code Civ. Proc., § 871.26, subd. (j)).

As to Lemon Law cases, Code of Civil Procedure section 871.26, effective

January 1, 2025, provides in material part, the following:

“(h) The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b):

- (1) Copy of or access to a version of the owner's manual for a motor vehicle of the same make, model, and year.
- (2) Any warranties issued in conjunction with the sale of the motor vehicle.
- (3) Sample brochures published for the motor vehicle.
- (4) The motor vehicle's original invoice, if any, to the selling dealer.
- (5) Sales or lease agreement, if the manufacturer is in possession.
- (6) Motor vehicle information reports, including build documentation, component information, and delivery details.
- (7) Entire warranty transaction history for the motor vehicle.
- (8) Listing of required field actions applicable to the motor vehicle.
- (9) Published technical service bulletins (“TSBs”)¹ for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.
- (10) Published information service bulletins (“ISBs”) for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.
- (11) Records relating to communications between the manufacturer or dealership and the owner or lessee

of the motor vehicle, including those related to repair orders or claims involving the motor vehicle.

(12) Warranty policies and procedure manuals.

(13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle.

(14) If a pre-suit restitution or replacement request is made, all call recordings of pre-suit communications with the consumer available at the time of service of the complaint.

(15) If a pre-suit restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims.

(16) If a pre-suit restitution or replacement request is made, any nonprivileged, prelitigation evaluation.

(17) Any warranty extensions or modifications issued by the manufacturer on the motor vehicle."

(Cal. Civ. Proc. Code § 871.26, subd. (h).)

III.

ANALYSIS

Plaintiff identifies many areas of content that Defendant generally has electronic and other access to but did not include in its initial disclosures. (Motion, pp. 7-15.)

Defendant counterargues that Code of Civil Procedure section 871.26 does not provide for all of the discovery that Plaintiff seeks, which instead must be sought pursuant to the California Discovery Act. Defendant further maintains that the section "does not require verified written responses, search-methodology descriptions, an unfiltered production, or every VIN-searchable record in FCA's internal systems." (Opposition, 2:12-14.) Defendant

further asserts that, “Plaintiff relies on attorney argument and general references to FCA materials to infer that additional documents must exist.” (Ibid, 4:13-14.)

The Court observes that there is a dearth of law about section 871.26 and nothing governing about legislative interpretation as to the intended scope of the statute.

Legislative interpretation begins by examination of the language of the statute, giving the words their ordinary meaning and considering them in the context of the statutory framework. (Barnes v. Dept. of Corrections (1999) 74 Cal.App.4th 126, 131.) Judges should not disregard express statutory language, or add language that is not there. (Yao v. Superior Court (2002) 104 Cal.App.4th 327, 333.) Only when statutory language is susceptible to more than one reasonable construction is it appropriate to consider extrinsic aids, including certain limited types of legislative history, to ascertain the meaning. (E.g., Esberg v. Union Oil Co. (2002) 28 Cal.4th 262, 269.)

According to legislative history, section 871.26 “would stay all discovery, except a limited set of disclosures....” (CA LEGIS 938 (2024), 2024 Cal. Legis. Serv. Ch. 938 (A.B. 1755) (WEST).) (Underscoring added.) Legislative history and the wording of the statute indicate a legislative intent to require much less disclosure than the great extent of information and searching for discovery responses that plaintiffs sometimes seek as part of initial disclosures in Lemon Law cases.

The Court does not order disclosure and production falling outside the scope of section 871.26, as to which the Discovery Act would serve as the prescribed procedure. Analogously, where a specialized Pitchess motion does not apply to the information sought, the proper procedure involves demanding an inspection of the information pursuant to Code of Civil Procedure section 2031.030. (Ibarra v. Superior Court (2013) 217 Cal.App.4th 695, 706.)

Additionally, the Motion is accompanied by a Declaration that contains no proof to support a finding that Defendant withheld existing and available documents, required by section

871.26. And statements in briefs filed are not supportive evidence. (Turrieta v. Lyft, Inc. (2024) 16 Cal.5th 664, 697.)

Finally, the Court finds that the Opposition shows good cause for not further providing documents pursuant to section 871.26, based upon reasonable contentions about legislative interpretation. So, the Court does not impose sanctions.

IV.

CONCLUSION

The Court denies the Motion, as analyzed herein.